

PROCLAMATION OF SALE

IN THE MATTER OF THE LOAN AGREEMENT CUM ASSIGNMENT AND DEED OF ASSIGNMENT OF RENTAL PROCEEDS
BOTH DATED THE 20TH DAY OF JANUARY, 2014

BETWEEN

UNITED OVERSEAS BANK (MALAYSIA) BHD [199301017069 (271809-K)]

ASSIGNEE / BANK

AND

GJEE HOLDINGS SDN. BHD. (COMPANY NO. 1015474-D)

ASSIGNOR / BORROWER

In exercise of the rights and powers conferred upon the Assignee/Bank under the Loan Agreement cum Assignment and Deed of Assignment of Rental Proceeds both dated the 20th day of January, 2014, entered into between the Assignee/Bank and the Assignor/Borrower in respect of the Sale and Purchase Agreement entered into between Mahabuilders Sdn Bhd (101505-A) ("the Developer/Vendor") and the Assignor dated the 16th day of March, 2013, it is hereby proclaimed that the Assignee/Bank with the assistance of the undermentioned Auctioneer

WILL SELL BY

PUBLIC AUCTION

ON THURSDAY, THE 25TH DAY OF JUNE, 2026

AT 3.30 IN THE AFTERNOON

AT WWW.NGCHANMAU.COM

(Bidder registration and payment of auction deposit must be made by 5pm, at least one (1) working day before auction date; otherwise the Auctioneer has the right to reject the registration. Bidders are advised to log in to the online bidding hyperlink provided and be on standby before the auction time.)

NOTE:

All intending bidders are advised to do the following prior to the auction sale:-

- 1) inspect the subject property;
- 2) obtain a copy of the Conditions of Sale and seek independent legal advice on the Conditions of Sale;
- 3) conduct an official title search at the relevant Land Office and/or other relevant authorities;
- 4) make the necessary enquiries with the Developer and/or other relevant authorities on the terms of consent to the sale herein; and
- 5) The successful bidder shall be responsible to obtain the consent of the Developer for direct transfer if individual/strata title has been issued

PARTICULARS OF PROPERTY :-

TITLE	: The strata title in respect of the subject property has been issued.
STRATA TITLE NO AND LOT NO	: Geran 572971, Lot 174504, Mukim of Pulaui, District of Johor Bahru, State of Johor
ACCESSORY PARCEL NO	: A805, A423, A422
DEVELOPER'S PARCEL NO.	: C-08-09, Type A, Storey No. 08, Building No. C together with Accessory Parcel No. L2-1206 & L2-1207, Nusa Heights Apartments @ Nusajaya
FLOOR AREA	: Approximately 93 square metres
ACCESSORY PARCEL AREA	: Approximately 29 square metres
TENURE	: Freehold
CATEGORY OF LAND USE	: "Bangunan"
EXPRESS CONDITIONS	: PANGSAPURI PERKHIDMATAN. i) Tanah ini hendaklah digunakan sebagai PANGSAPURI PERKHIDMATAN / RUANG PERNIAGAAN, dibina mengikut pelan yang diluluskan oleh Pihak Berkuasa Tempatan. ii) Segala kekotoran dan pencemaran akibat daripada aktiviti ini hendaklah disalurkan/dibuang ke tempat-tempat yang telah ditentukan oleh Pihak Berkuasa Tempatan berkenaan. iii) Segala dasar dan syarat yang ditetapkan dan dikuatkuasakan dari semasa ke semasa oleh Pihak Berkuasa berkenaan hendaklah dipatuhi.
RESTRICTION-IN-INTEREST	: i) Tuanpunya tanah tidak dibenarkan menjual unit-unit (parcel) bangunan yang akan dibina di atas tanah ini melainkan bangunan telah mula dibina mengikut pelan yang diluluskan oleh Pihak Berkuasa Tempatan yang berkenaan. ii) Petak-petak bangunan yang didirikan di atas tanah ini apabila sahaja bertukar miliknya kepada seorang Bumiputera/Syarikat Bumiputera maka tidak boleh terkemudian daripada itu dijual, dipajak atau dipindahmilik dengan apacara sekalipun kepada orang Bukan Bumiputera/Syarikat Bukan Bumiputera tanpa persetujuan Pihak Berkuasa Negeri. iii) Petak-petak bangunan yang didirikan di atas tanah ini tidak boleh dijual, dipajak atau dipindahmilik dengan apa cara sekalipun kepada Bukan Warganegara/Syarikat Bukan Warganegara tanpa persetujuan Pihak Berkuasa Negeri.
REGISTERED PROPRIETOR	: Mahabuilders Sdn Bhd (101505-A)
ENCUMBRANCE	: Assigned to United Overseas Bank (Malaysia) Bhd

LOCATION AND DESCRIPTION OF THE PROPERTY:

The subject property is a **service apartment** bearing postal address of **C-08-09, Apartmen Nusa Puncak, Jalan Gelang Patah, Taman Nusa Puncak, 79100 Iskandar Puteri, Johor Darul Takzim.**

RESERVE PRICE:

The subject property will be sold on an **"as is where is basis"** and subject to a reserve price of **RM307,800.00 (RINGGIT MALAYSIA THREE HUNDRED SEVEN THOUSAND AND EIGHT HUNDRED) Only** and subject to the Conditions of Sale and by way of an Assignment from the above Assignee/Bank subject to the consent being obtained by the Purchaser from the Developer and other relevant authorities if any, including all terms, conditions, stipulations and covenants which were and may be imposed by the Developer and the relevant authorities. **Any arrears of quit rent, assessments and service or maintenance charges which may be lawfully due to any relevant authority or the Developer up to the date of auction sale of the property shall be paid out of the purchase money upon receipt of full purchase price. All other fees, costs and charges relating to the transfer and assignment of the property shall be borne by the successful Purchaser. Bidders are further subject to the Online Terms & Conditions on www.ngchanmau.com.**

All intending bidders are required to deposit **10%** of the fixed reserve price for the said property by **Bank Draft** or **Cashier's Order** in favour of **UOBM for GJEE HOLDINGS SDN. BHD.** or via **RENTAS** or **online banking transfer (FPX) by 5PM, AT LEAST ONE (1) WORKING DAY BEFORE AUCTION DATE.** The balance of the purchase money shall be paid by the Purchaser within **one hundred and twenty (120) days** from the date of auction sale to **UNITED OVERSEAS BANK (MALAYSIA) BHD** via **Real Time Electronics Transfer of Funds and Securities (RENTAS).** Please refer to the Online Terms & Conditions on www.ngchanmau.com for the manner of payment of the deposit.

FOR FURTHER PARTICULARS, please contact **Messrs Chua & Partners**, Solicitor for the Assignee/Bank herein whose address is at Suite 8-12A-6, Level 12A, Menara Olympia, No. 8, Jalan Raja Chulan, 50200 Kuala Lumpur [Reference No.: MHH/UOB/A1529/GjeeHoldings_BBD, Telephone No.: 03-20202000 / 2022 4300] or the undermentioned Auctioneer at the address below.

NG CHAN MAU & CO. SDN. BHD. [200601018098 (737850-T)]

No. 7, Ground Floor, Block B, (B-0-7), Megan Avenue II,
No. 12, Jalan Yap Kwan Seng, 50450 Kuala Lumpur

TELEPHONE NO : 03-2162 3333

HOTLINE : 1700 81 8668 / 012-295 1388 (Whatsapp)

E-MAIL : info@ngchanmau.com

WEBSITE : www.ngchanmau.com

OUR REFERENCE : NCM/UOB/68809/az

LOW CHEE HIAN
ROSEMAINI BINTI AHMAD RADZI
Licensed Auctioneers

PERISYTIHARAN JUALAN

DALAM PERKARA MENGENAI PERJANJIAN PINJAMAN MERANGKAP PENYERAHAN HAK DAN SURATIKATAN PENYERAHHAKKAN HASIL SEWA YANG KEDUA-DUANYA BERTARIKH 20HB JANUARI, 2014

ANTARA

UNITED OVERSEAS BANK (MALAYSIA) BHD [199301017069 (271809-K)]

PIHAK PEMEGANG SERAHHAK / BANK

DAN

GJEE HOLDINGS SDN. BHD. (NO. SYARIKAT 1015474-D)

PIHAK PENYERAHHAK / PIHAK PEMINJAM

Dalam menjalankan hak dan kuasa yang telah diberikan kepada Pihak Pemegang Serahhak/Bank di bawah Perjanjian Pinjaman Merangkap Penyerahan Hak dan Suratikatan Penyerahhakan Hasil Sewa yang kedua-duanya bertarikh 20hb Januari, 2014, dimasukkan di antara Pihak Pemegang Serahhak/Bank dan Pihak Penyerahhak/Pihak Peminjam berkenaan dengan Perjanjian Jual Beli dimasukkan di antara Mahabuilders Sdn Bhd (101505-A) ("Pihak Penjual") dan Pihak Penyerahhak yang bertarikh 16hb Mac, 2013, adalah dengan ini diisytiharkan bahawa Pihak Pemegang Serahhak/Bank dengan bantuan Pelelong yang tersebut di bawah

AKAN MENJUAL SECARA LELONGAN AWAM

BIDAAN SECARA ATAS TALIAN
PADA HARI KHAMIS, 25 HARIBULAN JUN, 2026
PADA PUKUL 3.30 PETANG

DI LAMAN WEB WWW.NGCHANMAU.COM

(Pendaftaran pembida dan pembayaran deposit hendaklah dibuat sekurang-kurangnya satu (1) hari bekerja sebelum tarikh lelongan, selewat-lewatnya pada pukul 5 petang; jika tidak, Pelelong mempunyai hak untuk menolak pendaftaran. Pembida dikehendaki untuk log masuk pautan yang diberikan dan diminta bersedia sebelum masa lelongan.)

NOTA:

Bakal-bakal pembeli adalah dinasihatkan agar membuat perkara-perkara yang berikut sebelum jualan lelong:-

- 1) memeriksa hartanah tersebut;
- 2) memperolehi salinan Syarat-Syarat Jualan dan meminta nasihat guaman bebas mengenai Syarat-Syarat Jualan;
- 3) membuat carian hakmilik induk secara rasmi di Pejabat Tanah dan/atau pihak-pihak berkuasa lain yang berkenaan;
- 4) membuat pertanyaan dengan Pihak Pemaju dan/atau pihak-pihak berkuasa yang lain yang berkenaan mengenai terma-terma persetujuan untuk jualan ini; dan
- 5) Pembeli yang berjaya akan bertanggungjawab untuk mendapatkan kebenaran Pemaju untuk pindahmilik terus sekiranya hakmilik individu/strata telah dikeluarkan

BUTIR-BUTIR HARTANAH :-

HAKMILIK	: Hakmilik strata hartanah tersebut telah dikeluarkan.
NO HAKMILIK STRATA DAN NO LOT	: Geran 572971, Lot 174504, Mukim Pulai, Daerah Johor Bahru, Negeri Johor
NO PETAK AKSESORI	: A805, A423, A422
NO. PETAK PEMAJU	: C-08-09, Jenis A, No. Tingkat 08, No. Bangunan C berserta Petak Aksesori No. L2-1206 & L2-1207, Nusa Heights Apartments @ Nusajaya
KELUASAN LANTAI	: Lebih kurang 93 meter persegi
KELUASAN PETAK AKSESORI	: Lebih kurang 29 meter persegi
PEGANGAN	: Kekal (selama-lamanya)
KATEGORI KEGUNAAN TANAH	: "Bangunan"
SYARAT-SYARAT NYATA	: PANGSAPURI PERKHIDMATAN.

i) Tanah ini hendaklah digunakan sebagai PANGSAPURI PERKHIDMATAN / RUANG PERNIAGAAN, dibina mengikut pelan yang diluluskan oleh Pihak Berkuasa Tempatan. ii) Segala kekotoran dan pencemaran akibat daripada aktiviti ini hendaklah disalurkan/dibuang ke tempat-tempat yang telah ditentukan oleh Pihak Berkuasa Tempatan berkenaan. iii) Segala dasar dan syarat yang ditetapkan dan dikuatkuasakan dari semasa ke semasa oleh Pihak Berkuasa berkenaan hendaklah dipatuhi.

SEKATAN KEPENTINGAN : i) Tuanpunya tanah tidak dibenarkan menjual unit-unit (parcel) bangunan yang akan dibina di atas tanah ini melainkan bangunan telah mula dibina mengikut pelan yang diluluskan oleh Pihak Berkuasa Tempatan yang berkenaan. ii) Petak-petak bangunan yang didirikan di atas tanah ini apabila sahaja bertukar miliknya kepada seorang Bumiputera/Syarikat Bumiputera maka tidak boleh terkemudian daripada itu dijual, dipajak atau dipindahmilik dengan apa cara sekalipun kepada orang Bukan Bumiputera/Syarikat Bukan Bumiputera tanpa persetujuan Pihak Berkuasa Negeri. iii) Petak-petak bangunan yang didirikan di atas tanah ini tidak boleh dijual, dipajak atau dipindahmilik dengan apa cara sekalipun kepada Bukan Warganegara/Syarikat Bukan Warganegara tanpa persetujuan Pihak Berkuasa Negeri.

TUANPUNYA BERDAFTAR : **Mahabuilders Sdn Bhd (101505-A)**
BEBANAN : Serahhak kepada **United Overseas Bank (Malaysia) Bhd**

LOKASI DAN PERIHAL HARTANAH:

Hartanah tersebut adalah sebuah **pangsapuri servis** beralamat di **C-08-09, Apartmen Nusa Puncak, Jalan Gelang Patah, Taman Nusa Puncak, 79100 Iskandar Puteri, Johor Darul Takzim.**

HARGA RIZAB:

Hartanah tersebut akan dijual dalam "**keadaan sepertiimana sediaada**" dan tertakluk kepada satu harga rizab sebanyak **RM307,800.00 (RINGGIT MALAYSIA TIGA RATUS TUJUH RIBU DAN LAPAN RATUS)** Sahaja dan tertakluk kepada Syarat-Syarat Jualan dengan cara Penyerahhakan dari Pihak Pemegang Serahhak/Bank dan tertakluk kepada kebenaran untuk pindahmilik diperolehi daripada Pemaju dan Pihak Berkuasa yang berkenaan, sekiranya ada termasuk semua terma, syarat-syarat, stipulasi, waad di mana mungkin yang akan dikenakan oleh Pemaju dan Pihak Berkuasa. **Segala bayaran cukai pintu, taksiran termasuk caj perkhidmatan atau penyenggaraan yang mungkin dikenakan oleh Pihak Berkuasa atau Pemaju yang berkenaan setakat tarikh lelong/jualan akan dibayar daripada harga pembelian selepas menerima baki wang belian. Segala fi, kos dan caj-caj lain berhubung dengan pindahmilik dan penyerahhakan hartanah tersebut hendaklah ditanggung oleh Pembeli berjaya. Pembida juga tertakluk kepada Terma-terma dan Syarat-syarat Online dalam www.ngchanmau.com.**

Bagi penawar-penawar yang berminat adalah dikehendaki menandatangani **10%** daripada harga rizab dalam bentuk **Bank Draf** atau **Kasyier Order** di atas nama **UOBM untuk GJEE HOLDINGS SDN. BHD.** atau secara **RENTAS** atau **melalui pemindahan perbankan atas talian (FPX) sekurang-kurangnya satu (1) hari bekerja sebelum tarikh lelongan selewat-lewatnya pada pukul 5 petang** kepada Pelelong tersebut di bawah. Baki wang belian hendaklah dibayar oleh Pembeli dalam tempoh **satu ratus dan dua puluh (120) hari** dari tarikh jualan kepada **UNITED OVERSEAS BANK (MALAYSIA) BHD** melalui **Sistem Pemindahan Elektronik, Masa Nyata** bagi Dana dan Sekuriti (RENTAS). Sila rujuk Terma & Syarat Online di www.ngchanmau.com untuk cara-cara pembayaran deposit.

UNTUK MENDAPATKAN BUTIR-BUTIR SELANJUTNYA, sila berhubung dengan **Tetuan Chua & Partners**, Peguamcara bagi Pihak Pemegang Serahhak/Bank yang beralamat di Suite 8-12A-6, Level 12A, Menara Olympia, No. 8, Jalan Raja Chulan, 50200 Kuala Lumpur [No. Ruj: MHH/UOB/A1529/GjeeHoldings_BBD, No. Tel: 03-20202000 / 2022 4300] atau Pelelong yang tersebut di bawah.

NG CHAN MAU & CO. SDN. BHD. [200601018098 (737850-T)]

No. 7, Tingkat Bawah, Blok B, (B-0-7), Megan Avenue II,

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LAMAN WEB : **www.ngchanmau.com**

RUJUKAN KAMI : **NCM/UOB/68809/az**

LOW CHEE HIAN

ROSEMAINI BINTI AHMAD RADZI

Pelelong Berlesen

Bidder's Copy

CONDITIONS OF SALE

1. The sale is made by **UNITED OVERSEAS BANK (MALAYSIA) BHD** (hereinafter called "the Assignee/Bank") in the exercise of the rights and powers conferred upon the Assignee/Bank in pursuance of **Loan Agreement cum Assignment and Deed of Assignment of Rental Proceeds both dated the 20th day of January, 2014**, executed by **Gjee Holdings Sdn. Bhd.** ("the Assignor/Borrower") in favour of the Assignee/Bank and is made subject to all conditions and category of land use, expressed or implied or imposed upon or relating to or affecting the Property and subject to the terms and conditions contained herein.
2. Subject to the reserve price, the highest bidder being so allowed by the Auctioneer shall be the Purchaser but the Auctioneer reserves the right to regulate the bidding and shall have the sole right to refuse any bid or bids without giving any reason for such refusal. The Auctioneer reserves the right to alter or add to these Conditions of Sale at any time prior to the sale. In the case of any dispute as to any bid, the Auctioneer may at his own option forthwith determine the dispute or put the Property up again for sale or put the Property at the last undisputed bid or withdraw the Property from auction sale. Any bid shall be subject to the minimum amount as decided by the Auctioneer.
3. The Assignee/Bank be and is hereby at liberty to bid for the Property at the sale (**without having to pay any deposit whatsoever**). The Auctioneer shall have the right to withdraw the Property for sale at any time before it has been actually knocked down and either after or without declaring the reserved price. In the event of the Assignee/Bank becoming the Purchaser, the Assignee/Bank is at liberty to set off the purchase price against the amount due and owing under the said **Loan Agreement cum Assignment and Deed of Assignment of Rental Proceeds** on the date of sale, plus the cost and expenses including but not limited to taxes, duties or levies of the sale and all other costs and expenses including but not limited to taxes, duties or levies whatsoever in connection with this matter.
4. No bid shall be less than the last previous bid by a sum to be fixed by the Auctioneer at the time of the sale and no bidding shall be retracted. Should there be any retraction from the bidder(s) before the fall of the hammer, the deposit of **10%** of the reserve price shall be forfeited to the Assignee/Bank and the Property shall at the option of the Assignee/Bank be put up for sale again or the Assignee/Bank may decide to adjourn the auction sale to another date.
5. Each intending bidder (**with the exception of the Assignee/Bank**) is required to deposit with the Auctioneer **10%** of the fixed reserve price for the Property by **Bank Draft or Cashier's Order** in favour of **UOBM for GJEE HOLDINGS SDN. BHD.** or via **RENTAS or online banking transfer (FPX) by 5PM, AT LEAST ONE (1) WORKING DAY BEFORE AUCTION DATE**. Any intending bidder who intends to bid on behalf of another person, body corporate or firm is required to deposit with the Auctioneer prior to the auction sale an authority letter to state that he is acting on behalf of another person, body corporate or firm, and he/she is authorised to sign all the necessary documents. **For a Bumiputra lot, only Bumiputra(s) are allowed to act for and on behalf of the bidder.** All intending bidders shall be required to verify their identities by showing the Auctioneer their identity cards prior to the commencement of the auction, failing which they shall not be entitled to bid. A person who has not reached the age of majority as defined under the Age of Majority Act 1971 (Act 21) (which is 18 years of age) as at the date of auction sale, or who is an undischarged bankrupt, shall not be permitted to bid in his personal capacity or act as agent of a principal at the auction sale. **A foreign citizen or foreign company is only allowed to bid for the Property subject to the prevailing legal requirements, guidelines and/or existing policies and if the bid is successful, the sale is subject to the foreign citizen or foreign company applying and obtaining at his/her/its own costs the unconditional consent of the Foreign Investment Committee (if any) and/or relevant State Authorities in the said sale in accordance with the terms stated.**
6. After the fall of the hammer, the Purchaser (**other than the Assignee/Bank if he/she is the Purchaser**) shall within **one (1) working day** from the auction date pay to the Assignee/Bank, the difference between the deposit paid under Clause 5 above and the sum equivalent to **10%** of the successful bid ("Differential Sum") in **CASH** or by **BANK DRAFT**. The differential sum and the deposit paid under Clause 5 above (collectively referred to as "the Deposit") shall be deemed to be part payment of the purchase price. The Purchaser shall also complete and execute these Conditions of Sale and Memorandum of Contract. The Deposit shall be held by the Assignee/Bank subject to the provisions of Clauses 7 and 9 herein. **Please refer to the Online Terms & Conditions on www.ngchanmau.com for the manner of payment of the deposit.**
7. In the event that the Purchaser fails to pay the Deposit or fails to sign these Conditions of Sale and Memorandum of Contract, all monies paid by the Purchaser to the Assignee/Bank shall be forfeited to the Assignee/Bank and the Property shall forthwith be again put up for sale. The costs of such re-sale together with the deficiency in price (if any) which may result from a re-sale or the purchase money if there is no re-sale, as the case may be, shall be recoverable from the defaulting Purchaser and the Purchaser shall have no claims whatsoever against the Assignee/Bank, their Solicitors or the auctioneer in relation thereto.
8. The balance of the purchase price shall be paid in full by the Purchaser to the Assignee/Bank within **one hundred and twenty (120) days** from the date of the auction sale, by **remitting the payment directly to the Assignee/Bank via RENTAS**. The period of **120 days** will not be extended by the Assignee/Bank, unless the Purchaser shall have, prior to the expiry of the said period, issued a written request to the Assignee/Bank applying for an extension of time and the Assignee/Bank may in its absolute discretion (i) agree to grant the extension of time unconditionally, or (ii) refuse the request, in which case the Deposit shall be forfeited, or (iii) agrees to grant an extension of time subject to conditions (including but not limited to the imposition of late payment interest/charges at such rate/amount as the Assignee/Bank shall determine) without assigning any reasons whatsoever and such decision shall be binding on the Purchaser.
Upon payment via RENTAS, the Purchaser shall immediately forward the RENTAS Credit Payment Advice with the details above to the Assignee/Bank or to the Solicitors for the Assignee/Bank. The Assignee/Bank and/or the Solicitors for the Assignee/Bank shall not be responsible for any delay caused or costs incurred from any payment made/transaction conducted via RENTAS. Any service charges and/or cost payable for the payment made/transaction conducted via RENTAS shall be borne by the Purchaser.
9. In default of such payment of the balance of the purchase price within the time and in the manner as stipulated in Clause 8 above, the Deposit shall be forfeited to the Assignee/Bank and the Property may be put up for sale by the Assignee/Bank at its sole discretion. The cost of such resale together with either the deficiency in price (if any) which may result from a resale, or the balance of the purchase price if there is no resale shall be recoverable from the defaulting Purchaser and the Purchaser shall have no claims whatsoever against the Assignee/Bank, their Solicitors or the auctioneer in relation thereto.
10. Upon full payment of the balance of the purchase price and in accordance with Clause 8 above and subject to the consent to transfer from the Developer and/or any relevant authorities (**if applicable**) being obtained by the Purchaser, the Assignee/Bank shall execute or cause to be executed as soon as possible at the Purchaser's own cost and expenses (**including but not limited to legal fees, stamp duty, registration fees, taxes, duties and levies**) the Assignee's standard Assignment in favour of the Purchaser of all the rights and benefits under the Sale and Purchase Agreement entered into between the Developer of the Property and the Assignor upon such terms and conditions stipulated by the Assignee/Bank in its absolute discretion. Thereafter, upon the Purchaser's payment of all such costs and expenses and any administrative or transfer costs or any other maintenance/service charges and outgoings including taxes, duties or levies that may be due to or imposed by the Developer and/or any relevant authorities notwithstanding that in the consent letter, the Developer may require such payments to be paid by the Assignee/Bank, the Assignee/Bank shall deliver to the Purchaser or his/her solicitor the duly executed Assignment, the original Sale and Purchase Agreement and certified true copy(ies) of the previous Assignment. For this purpose, the Purchaser hereby agrees that the Assignment to be executed shall be in the standard form duly obtained from the Assignee/Bank.

- 10.1 *It shall be the duty of the Purchaser to obtain at the Purchaser's own costs, the confirmation as stated in Section 22D(4) of the Housing Development (Control and Licensing) Act, 1966 and to obtain copies of the statement of account for the outstanding charges (**i.e. the quit rent, assessment and service or maintenance charges only**) from the relevant authorities and/or the total amount due to the Developer under the principal sale and purchase agreement and to forward copies thereof together with the calculations as to the apportionment of the respective parties' liability thereof up to the date of the auction sale to the Assignee/Bank's Solicitors for approval and verification within **one hundred and twenty (120) days** from the date of the auction sale. For avoidance of doubt, in the event such copies of the statement of account and calculations of the apportionment of the respective parties' liability are not submitted with the stipulated **one hundred and twenty (120) days**, any subsequent claims made thereafter will not be entertained by the Assignee/Bank and the same shall be borne by the Purchaser solely
- 10.2 *It is hereby agreed that **any arrears of quit rent, assessment and service or maintenance charges** (excluding penalty interest, late charges, insurance and utilities bills) only, which may be lawfully due (the Bank reserves the right to refuse to pay any sums not lawfully due and/or those sums that are time barred) to any relevant authority or the Developer up to the date of the auction sale of the Property shall be paid out of the purchase price and no set off is permitted. The arrears in quit rent and assessment bills and service/maintenance charges (excluding penalty interest, late charges, insurance and utilities bills) shall only be paid provided that the Assignee/Bank is in receipt of the balance purchase money and the relevant receipts for quit rent and assessment and service/maintenance charges issued by the relevant authorities from the Purchaser within **one hundred and twenty (120) days** from the date of the auction sale. All outstanding charges incurred after the date of successful auction shall be borne by the Purchaser. Nothing herein shall impose any obligation on the part of the Assignee/Bank to pay any outstanding water, electricity, telephone, sewerage, sinking funds/special funds or other charges of personal nature due and payable by the Assignor to the relevant authority or the Developer. Any other charges as at the date of the auction sale not specified herein (including but not limited to telephone bills, water bills, electricity bills, sinking funds/special funds and sewerages charges), if outstanding, shall not be borne by the Assignee/Bank
- 10.3 *The Purchaser undertakes to forward to the Developer upon completion, the duly stamped Assignment and a copy of this stamped Proclamation of Sale/Memorandum of Contract together with the full payment of all sums and outgoings due to the Developer under the Sale and Purchase Agreement as required under Section 22D(2) of the Housing Development (Control and Licensing) Act, 1966 **within fourteen (14) days** from the date of stamping of the Assignment and to forward a copy of the covering letter with the Developer's acknowledgement of receipt to the Assignee/Bank or its Solicitors.
- 10.4 **If individual title/strata title has been issued, the Purchaser undertakes, at his own cost and expense, to obtain the Developer's consent to the Direct Transfer of the property to the Purchaser whereby the Purchaser also undertakes to commit all acts and deeds related to the Memorandum of Transfer to enable the effective transfer of the property to the Purchaser **(including the full settlement of all legal fees, stamp duty, registration fees, taxes, duties and levies connected therewith)**
- 10.5 **Notwithstanding any contrary terms and conditions which may be imposed by the Developer on the Assignee/Bank in granting the consent to the sale herein (if applicable), it is hereby agreed that **any arrears of quit rent, assessment and service or maintenance charges** (excluding penalty interest, late charges, insurance and utilities bills) only, which may be lawfully due (**the Assignee/Bank reserves the right to refuse to pay any sums not lawfully due and/or those sums that are time barred**) to any relevant authority or the Developer up to the date of the auction sale of the Property shall be paid out of the purchase price and no set off is permitted. The arrears in quit rent and assessment bills and service/maintenance charges (excluding penalty interest, late charges, insurance and utilities bills) shall only be paid provided that the Assignee/Bank is in receipt of the balance purchase money and the relevant receipts for quit rent and assessment and service/maintenance charges issued by the relevant authorities from the Purchaser within one hundred and twenty (120) days from the date of the auction sale. All outstanding charges incurred after the date of successful auction shall be borne by the Purchaser. Nothing herein shall impose any obligation on the part of the Assignee/Bank to pay any outstanding water, electricity, telephone, sewerage, sinking funds/special funds or other charges of personal nature due and payable by the Assignor to the relevant authority or the Developer (including consent fees, vetting legal fees and taxes, duties or levies imposed by the Developer in Direct Transfer of the property to the Purchaser). Any other charges as at the date of the auction sale not specified herein (including but not limited to telephone bills, water bills, electricity bills, sinking funds/special funds and sewerages charges), if outstanding, shall not be borne by the Assignee/Bank
- 10.6 If the individual title/strata title has been issued, whether before, on or after the auction sale, the Assignee/Bank shall NOT be required to register its charge(s) nor to procure a transfer in Form 14A of the National Land Code 1965, in favour of the Purchaser from the Developer or the Proprietor (as the case may be). Upon full payment of the purchase price and subject to the consent from the relevant authorities (if applicable), it is hereby mutually agreed that the Purchaser shall be the beneficial owner of the Property whereas the Developer and/or the Proprietor is the bare trustee. The Purchaser undertakes, at his own costs and expenses, to obtain the relevant party's execution (including Developer and/or Proprietor) on the Direct Transfer of the Property to the Purchaser whereby the Purchaser also undertakes to commit all acts and deeds related to the Memorandum of Transfer to enable the effective transfer of the Property to the Purchaser (including the full settlement of all legal fees, stamp duty, registration fees, taxes, duties and levies connected therewith). In the event the Developer and/or the Proprietor refused to transfer the Property to the Purchaser, the Purchaser shall at his own costs and expenses commence the appropriate legal action (including specific reliefs) to compel the performance of such transfer or procure a 'Double Transfer' from the respective parties. The refusal of the Developer and/or the Proprietor is not a ground for termination of this auction sale.
11. As from the time of the auction sale, the Property shall be at the sole risk of the Purchaser as regards to any loss or damage by fire or other accident or otherwise or any restrictions-in-interest, easements, leases, tenancies, occupiers, charges, caveats, covenants, liabilities arising/entered after the auction sale.
12. The Purchaser shall deem to have inspected the Property and therefore admit the identity and the **"as is where is basis"** of the Property purchased by him with that comprised in the muniments offered by the Assignee/Bank as the title of the Property upon the evidence afforded by the comparison of the description in the particulars and muniments respectively.
13. The Purchaser shall bear and pay all fees and expenses including but not limited to all legal fees, stamp duty, search fees, registration fees, taxes, duties and levies in connection with, incidental to or pursuant to the Assignment and all other documents necessary for effecting the transfer or assigning the beneficial ownership in the Property to the Purchaser.
14. The Property is sold subject to all existing easements, leases, tenancies, occupiers, charges, caveats, previous sale and purchase, previous assignment, covenants, liabilities subsisting thereon or thereover and the Purchaser shall be deemed to have full knowledge of the state and condition of the Property.
15. The Assignee/Bank has no notice or knowledge of any encroachment or that the Government or other authority has any immediate intention of acquiring the whole or any part of the Property for roads or any improvement schemes and if such encroachment shall be found to exist or if the Government or any local authority has any such intention, the same shall not annul any sale or shall any abatement or compensation be allowed in respect thereof.
16. The Property is believed and shall be taken to be correctly described and is sold subject to all express conditions, restrictions-in-interest, easements, leases, tenancies, occupiers, charges, caveats, previous sale and purchase, previous assignment, covenants, liabilities (including but

not limited to liabilities to local authorities incurred but not ascertained and any rates made but not demanded), encumbrances and rights, (if any), subsisting thereon or thereover without any obligation arising to define the same respectively and the Purchaser shall be deemed to have full knowledge of the state and conditions of the Property and no error, mis-statement, omission or mis-description shall annul the sale nor shall any compensation be allowed in respect thereof. The Assignee/Bank will not be liable for any caveats lodged on the Property by third party and it is the duty of the Purchaser to remove the caveat at his/her own cost (if any).

17. In the event of the sale being set aside for any reasons whatsoever by the Assignee/Bank or by an Order of court or consent not being obtained by the Purchaser from the Developer (if applicable) or any other relevant authorities (if applicable) (other than that due to any act of default and/or omission by the Purchaser) this sale shall become null and void and be of no further effect and the Assignee/Bank shall refund the deposit and other monies (if any, paid herein towards account of the purchase price by the Purchaser to the Assignee/Bank) to the Purchaser free of interest less all expenses, costs and fees including but not limited to taxes, duties or levies incurred by the Assignee/Bank in connection with or relating to the sale **PROVIDED ALWAYS THAT** the Purchaser shall have prior thereto returned to the Assignee/Bank all documents, duly intact, which may have been delivered pursuant to the sale, and if the Property has been effectively assigned to the Purchaser, the Purchaser shall have effectively re-assigned the Property back to the Assignee/Bank. The Purchaser shall not be entitled to any claim and demand whatsoever against the Assignee/Bank, the Solicitors, the Auctioneer or any other party on account thereof. A certificate by an officer of the Assignee/Bank verifying such expenses and/or fees shall be final and conclusive and shall be binding on the Purchaser. Upon refund by the Assignee/Bank under this clause, the Purchaser shall have no other or further claims, demands whatsoever in nature and howsoever caused against the Assignee/Bank, its Solicitors and the Auctioneer or their respective servants or agents.
18. The Property shall be sold subject to the consent from the relevant authorities (if applicable). The Purchaser shall within thirty (30) days from the date of auction sale apply to and obtain from the Developer and/or other relevant authorities (if applicable) for consent to transfer or for assignment of the Property and the Purchaser has to comply with all the terms and conditions as imposed by the Developer or other relevant authorities (if applicable) in granting the said consent to transfer or assigning to the Purchaser within the period of **one hundred and twenty (120) days** or within such period as may be specified by the Developer and/or the relevant authority (if applicable), whichever is the earlier and to keep the Assignee/Bank or its Solicitors informed at all times of the developments and forward a copy of the consent to the Assignee's Solicitors upon receipt of the same. All fees, charges and expenses including but not limited to taxes, duties or levies in connection with or incidental to the application shall be borne by the Purchaser.
19. In the event there is any restriction-in-interest on the Property, it is the duty of the Purchaser to comply with the restriction-in-interest and ensure that the sale is completed within **one hundred and twenty (120) days** from the date of the successful auction subject to Clause 8 above.
20. In the event the consent from the Developer and/or other relevant authorities shall be granted subject to conditions which are not acceptable to the Assignee/Bank, the Assignee/Bank shall be entitled to terminate the sale in its absolute discretion whereupon the sale shall be terminated and the Assignee/Bank shall refund all monies paid by the Purchaser towards the purchase price free of interest less all expenses, costs and fees including but not limited to taxes, duties or levies incurred by the Assignee/Bank in connection with or in relation to the sale herein **PROVIDED ALWAYS THAT** the Purchaser shall have prior thereto returned to the Assignee/Bank all documents, duly intact, which may have been delivered pursuant to the sale and if the Property has been effectively assigned to the Purchaser, the Purchaser shall have effectively re-assigned the Property back to the Assignee/Bank. The Purchaser shall not be entitled to any claims and demands whatsoever against the Assignee/Bank, the Solicitors, the Auctioneer or any party on account thereof.
21. The Assignee/Bank does not undertake to deliver vacant possession of the Property to the Purchaser. The Purchaser only after the payment of the balance of the purchase price in full shall at his own cost and expenses take possession of the Property without obligation on the part of the Assignee/Bank or its agent to give vacant possession. If the property is tenanted, the Assignee/Bank has no obligation to deal with such tenancy or enter into a novation agreement with any party(ies). The Successful Bidder shall deal directly with the tenant/occupier.
22. In the event that the sale is terminated for any reasons whatsoever, the Purchaser if vacant possession of the Property has been delivered, shall redeliver vacant possession of the Property to the Assignee/Bank at the costs of the Purchaser immediately upon such termination.
23. For the purpose of these conditions, the time allowed by the conditions for the payment of the balance of the purchase money shall be deemed to be the essence of the contract.
24. The Property is sold on an **"as is where is" basis**.
25. The Assignee/Bank be and is hereby at liberty to postpone, call-off or adjourn the auction sale at any material time or to terminate the auction sale of the Property after the fall of the hammer without having to provide any reasons or grounds whatsoever.
26. All statements made in the Proclamation of Sale and Conditions of Sale or otherwise relating to the Property are made without responsibility on the part of the Assignee/Bank, its Solicitors and the Auctioneer or any of them. No such statement may be relied upon as a statement of representation of fact. All intending bidders must satisfy themselves by inspection or otherwise as to the correctness of any such statements and neither the Assignee/Bank, its Solicitors, the Auctioneer nor any person in their employment has any authority to make or give any representation or warranty whatever in relation to the Property.
27. In the event of any discrepancy, omission, mis-statement, mis-description or error, appearing in the various translations of the particulars and conditions herein, the English version shall prevail.
28. The Assignee/Bank makes no representation as to the ownership of furniture fittings and fixtures situated at the Property which items may be on hire purchase, lease or deferred sale from third parties. In such cases the Assignee/Bank accepts no liability for any payments which may be outstanding in respect thereof and the Property is sold subject thereto.
29. All necessary investigations required by intending bidders for their purpose shall be made by the intending bidders themselves who shall bear all costs and expenses relating thereto. All intended bidders including the Purchaser shall be deemed to have read, understood and accepted these Conditions of Sale prior to the auction.
30. The Purchaser should engage a solicitor to act on the Purchaser's behalf for the completion of the purchase of the Property and in the event that no solicitor is appointed, the Purchaser is deemed to have elected to be unrepresented in this sale.
31. In the event of any dispute whatsoever in respect of the sale, the Purchaser hereby expressly agrees to resolve the same with the Assignee/Bank.
32. Unless expressly provided herein, the Assignee/Bank, its Solicitors and the Auctioneer or any of them or their respective agents or servants shall under no circumstances be liable to any bidders or the Purchaser, including but not limited to liability in tort, in relation to any matter or thing arising out of, in connection with, or in respect of the sale of the Property whatsoever and howsoever caused arising.
33. The Purchaser is liable to pay for any other taxes or levies which as at the date of the auction sale of the Property or at any date subsequent to the date of the auction sale of the Property, is required by law or regulations, guidelines, decisions or directives issued under such laws (and shall include any amendments made to such laws, regulations, guidelines, decision or directives) to be paid to any body or authority having jurisdiction over the Assignee/Bank in respect of any monies charged or incurred by the Assignee/Bank in relation to the sale of the Property to the Purchaser.

34. Any other taxes or levies incurred by the Assignee/Bank in relation to the sale of the Property to the Purchaser and any other goods or services provided under the Proclamation of Sale and Conditions of Sale shall be borne and charged to the Purchaser and in the event that the Assignee/Bank shall effect any payment, the Purchaser shall be liable to reimburse the Assignee/Bank for such amounts paid.
35. Online bidders are also bound by online Terms and Conditions contained at www.ngchanmau.com in addition to this Conditions of Sale. If there are any conflicts or inconsistencies between the online Terms and Conditions and this Conditions of Sale, the provisions in this Conditions of Sale shall prevail.

Note:

1:* Applicable only for properties that comes within the definition of 'housing accommodation' under the Housing Development (Control and Licensing) Act, 1966.

2: Applicable for properties that does not come within the definition of Section 22D under the Housing Development (Control and Licensing) Act, 1966.**

Bidder's Copy

CONTRACT

MEMORANDUM:- At the sale by Public Auction this **25th day of June, 2026**, of the property comprised in the foregoing particulars that is to say the rights, title, interest and benefits under the Sale and Purchase Agreement dated the 16th day of March, 2013, entered into between **Mahabuilders Sdn Bhd (101505-A)** of the one part and **Gjee Holdings Sdn. Bhd.** of the other part in relation to the subject property identified as

Developer's Parcel :

Parcel No. C-08-09, Type A, Storey No. 08, Building No. C together with Accessory Parcel No. L2-1206 & L2-1207, Nusa Heights Apartments @ Nusajaya; and

Postal Address :

C-08-09, Apartmen Nusa Puncak, Jalan Gelang Patah, Taman Nusa Puncak, 79100 Iskandar Puteri, Johor Darul Takzim

developed by **Mahabuilders Sdn Bhd (101505-A)**, the highest bidder(s) for and declared the Purchaser(s) of the said property for the sum of **RM** and a sum of **RM** has been paid to the Assignee/Bank by way of deposit and agrees to pay the balance of the purchase price and complete the purchase according to the conditions and the said Auctioneer hereby confirms the said purchase and the Assignee/Bank acknowledge receipt of the said deposit.

PURCHASER'S PARTICULARS :-

ADDRESS _____

PURCHASE PRICE : RM _____
DEPOSIT PRICE : RM _____
BALANCE DUE : RM _____

SIGNATURE OF PURCHASER(S)/
PURCHASER(S)'S AUTHORISED AGENT

SIGNATURE
FOR MESSRS NG CHAN MAU & CO. SDN. BHD.
LICENSED AUCTIONEER

SIGNATURE
FOR MESSRS CHUA & PARTNERS
SOLICITORS FOR THE ASSIGNEE/BANK

Bidder's Copy

ONLINE TERMS AND CONDITIONS

The Terms and Conditions specified herein shall govern all users of www.ngchanmau.com ("NCM website").

1. ELIGIBILITY OF E-BIDDERS

- 1.1. Parties who are interested to participate in public auction and bid online ("E-Bidders") may do so by logging on to NCM Website and register as a user.
- 1.2. E-bidders who register as a user to participate in the public auction via NCM website shall:
 - a. For an individual, be of 18 years and above, sound mind and not an undischarged bankrupt;
 - b. For a company, be incorporated under the laws of Malaysia and must not be in liquidation;
 - c. Be able to take, fulfil and perform all necessary actions, conditions and matters (including obtaining any necessary consents) in terms of law to enable E-bidders to participate in the public auction and complete the purchase in the event of successful bid.
- 1.3. E-bidders' eligibility requirements are also subject to the existing Federal and State legal provisions. Non-Malaysian E-bidders or companies are also advised to take note of restrictions applicable on foreign purchase imposed by relevant authorities.

2. REGISTRATION OF E-BIDDERS

- 2.1. E-Bidders shall provide true, current and accurate information to register as a user.
- 2.2. Individual E-Bidders are required to upload copies of identification documents.
- 2.3. For E-Bidders who are companies, certified copies of the Form 24; Form 44; Form 49 (or its equivalent forms under the Companies Act 2016); Memorandum and Articles of Association/Constitution of the company in compliance with Companies Act 2016 and a duly signed Board of Directors' Resolution shall be uploaded.
- 2.4. E-Bidders will only need to register as user once and the registered E-Bidder's username and password can be used for the subsequent auctions on the NCM website.
- 2.5. E-Bidders shall keep the E-Bidders' account details strictly confidential and be liable for any bids made via the E-Bidders' account.
- 2.6. E-bidders are responsible to identify the property properly and to ensure that the details and description of the Property are correct and accurate before bidding.
- 2.7. It is the sole and absolute responsibility of all intending E-Bidders at their own costs and expense, to seek and obtain from the Developer and/or the relevant authorities or bodies, all confirmations and/or consents as may be required or as may be applicable in respect of the purchase of the Property and to satisfy themselves on the physical condition of the Property and all matters in connection with the Property prior to the bidding (including and not limited to verifying the identity, particulars, state and condition of the Property and the terms of the conditions and restrictions affecting the Property if any, whether or not the Property is reserved for Bumiputra or Malay Reserved only and/or is a low cost property, and matters relating to the ownership and transfer of the Property, the status of the separate document of title to the Property and its particulars, the liabilities including amounts of outstanding service or maintenance charges owing and other obligations pertaining to the Property and the E-Bidders' eligibility and qualification to purchase the Property). E-Bidders shall be deemed to have full knowledge of all of the matters aforesaid. Ng Chan Mau & Co Sdn Bhd ("the Auctioneer"), the Assignee/Bank, the Assignee/Bank's solicitors and NCM website and their respective agents or servants do not in any way make any representation or warranty in respect of any of the aforesaid and shall not in any way be responsible or liable to the E-Bidders in respect of any of the aforesaid.
- 2.8. The registration of an individual or company as a user on the NCM website shall not be construed as approval of eligibility of the intended E-bidder to conclude the auction sale. Please refer to Part 1 above for requirements on the eligibility of E-bidders.

3. HOW TO BID

- 3.1. E-Bidders may browse through the NCM website and select the properties the E-Bidders wish to bid.
- 3.2. By proceeding with the bid in the Auction, the E-Bidders are deemed to have agreed and accepted the NCM website Terms & Conditions.
- 3.3. The Terms & Conditions shall be read together with all the Conditions of Sale attached to the Proclamation of Sale which is uploaded on the NCM website and shall be deemed to have been read and agreed upon by the E-Bidders prior to bidding. In the event of any inconsistency between the Terms & Conditions stated herein and the Conditions of Sale attached to the Proclamation of Sale, the Conditions of Sale attached to the Proclamation of Sale shall prevail.
- 3.4. E-Bidders must make deposit payment as required under the Conditions of Sale attached to the Proclamation of Sale. Payment of the deposit must be made by **Bank Draft** in favour of **UOBM for GJEE HOLDINGS SDN. BHD.** or via **FPX (Financial Process Exchange)** which is an online payment gateway that facilitates local interbank transfer of funds and available on the Auctioneer's Website or via **RENTAS**.
- 3.5. E-Bidders are required to complete the registration process by inserting the relevant details and uploading the relevant documents onto the NCM website and make the deposit payment as stipulated in Part 3.4 above latest by 5pm, at least one (1) working day before the auction date. The Auctioneer will hold the deposit received in the Auctioneer's bank account as "stakeholder" and such deposit will be paid out in accordance to Part 5.1 below.
- 3.6. Registration shall be subject to verification and approval of NCM website and subject further to deposit payment being cleared by the bank. Please take note that approval from NCM website administrator may take at least 1 working day and any improper, incomplete registration or late registration may be rejected at the sole discretion of the NCM website. Neither NCM website nor its agents and/or representatives bear(s) any responsibility or assume(s) any liability in the event that the registration of a prospective E-Bidder is rejected and/or delayed for any reason whatsoever. In the event the registration is rejected, the deposit paid (if cleared by the bank) shall be refunded to the same bank account from which the deposit transfer was made within two (2) working days.
- 3.7. E-Bidders intending to authorize any person to execute the Memorandum/Contract of Sale upon successful bidding of the property shall do so by furnishing the following documents to the Auctioneer:
 - a. A colour copy of the person's NRIC (front and back); and
 - b. A copy of the Letter of Authorization (if individual) or certified true copy of the Board of Director's Resolution (if company) authorizing such person to do so.
- 3.8. Upon approval and verification by NCM website and subject to the deposit payment being cleared by the bank, registered E-Bidders will receive a password, i.e. "PIN", and a secured hyperlink via email to the registered email address which allows the registered E-Bidders to bid for their intended property on the auction day.
- 3.9. Bidding may be done via a computer, smart phone or any device with internet connection.
- 3.10. Once the E-Bidders have successfully registered for Online Bidding, the E-Bidders will be eligible to bid online.
- 3.11. Upon receipt of the secured hyperlink, only one device may be used to access the online bidding interface at any one time.
- 3.12. All E-Bidders shall read and be familiarised with NCM website terms and conditions, the conditions of sale and the Terms & Conditions stated herein and the usage of the e-bidding system prior to bidding.

4. BIDDING PROCEDURES

- 4.1. Bidding shall generally commence based on the sequence of the lot being shown on the online bidding interface provided. However the Auctioneer has the right to vary this sequence without notice.
- 4.2. It shall be the responsibility of registered E-Bidders to log in through the online bidding hyperlink provided to wait for their turn to bid for the property lot in which they intend to bid. E-Bidders are advised to log in to the online bidding hyperlink provided and be on standby before the auction time.
- 4.3. The Auctioneer has the right to set a new auction price in the event there is more than 1 bidder. The reference to a "bidder" here includes E-Bidders as well as on-site bidders (if applicable).
- 4.4. The Auctioneer will announce the amount of incremental bid and the same will appear on the website prior to the commencement of the auction.
- 4.5. Auction starts when a flash message "Starts" is displayed, followed by a message stating "Auction started. Enter your bid now".
- 4.6. Each bid will be called for 3 times, "First Calling", "Second Calling", "Final Call". Registered E-Bidders may submit their bid at any of these stages of biddings by entering the bid amount.
- 4.7. Any bid by the registered E-bidders shall not be withdrawn once entered.
- 4.8. In the event of any clarification, disruption or special situation, the Auctioneer may at his discretion decide to pause, postpone and/or call off the public auction. The E-bidders will be notified of this on the webpage.
- 4.9. When system displays "No More Bids", no further bids will be accepted by the Auctioneer, whether on-site (if applicable) or through the NCM website.
- 4.10. The bidder with the highest bid shall be declared as successful bidder upon the fall of hammer.
- 4.11. The decision of the Auctioneer shall be final and binding on all on-site (if applicable) and/or E-bidders.
- 4.12. A successful bidder will be directed to a page where further directions are given in order to conclude the sale of the auction property. Please also refer to Part 5 below.
- 4.13. Unsuccessful E-Bidders will have the deposit paid processed to be refunded to the same bank account from which the deposit transfer was made within two (2) working days.
- 4.14. The information shown and/or prompted on the screen handled by the NCM website regarding the public auction, particularly to the calling of bidding price during the bidding process and the declaration of successful bidder shall be final and conclusive.

5. POST PUBLIC AUCTION

- 5.1. Any E-Bidders who successfully bids for the Property shall and undertake to sign the Memorandum/Contract of Sale and pay to the Assignee/Bank the difference between 10% of the purchase price and the deposit paid under Part 3.4 above ("differential sum") by **bank draft** in favour of **United Overseas Bank (Malaysia) Bhd** or via **FPX (Financial Process Exchange)** or **RENTAS** within 1 working day from the date of auction, failing which the deposit paid will be forfeited to the Assignee/Bank and the sale will be deemed cancelled/terminated and the property may be put up for subsequent auction without further notice to the said E-Bidders. The Auctioneer shall send the Memorandum/Contract of Sale for stamping and thereafter forward the same together with the deposit paid under Part 3.4 above and the differential sum paid under this part, if any, to the Assignee/Bank.
- 5.2. In the event there is any inconsistency between the personal details and documents uploaded in the NCM website and the actual documents produced by the successful bidder, the Auctioneer shall have the right to refuse the successful bidder from signing the Memorandum/Contract of Sale and may at its discretion cancel the sale and proceed to put the property up for a new auction and the deposit paid shall be used to defray the cost of the auction.
- 5.3. The Memorandum/Contract of Sale, upon being signed by the Auctioneer, Solicitor for the Assignee/Bank and successful bidder, shall be a conclusive evidence for the sale of the Property to the successful bidder.
- 5.4. The Memorandum/Contract of Sale may be signed in any number of counterparts, all of which taken together shall constitute one and the same instrument. Any party may enter into this Memorandum/Contract of Sale by signing any such counterpart and each counterpart may be signed and executed by the parties and shall be as valid and effectual as if executed as an original.

6. OTHER APPLICABLE TERMS & CONDITIONS

- 6.1. All registered E-bidders at NCM website undertake to fully comply with this terms and conditions herein. Further, all successful E-Bidders shall also be bound by the terms and conditions of the Conditions of Sale attached to the Proclamation of Sale.
- 6.2. The Auctioneer may from time to time add, modify, or delete any terms and conditions herein in the interest of the Auctioneer and/or the Assignee/Bank.
- 6.3. E-Bidders are responsible to ensure that their internet access is in good condition during the whole process of public auction until conclusion thereof. Unsatisfactory internet access may disrupt any bids made by the E-Bidders.
- 6.4. The Auctioneer or the NCM website shall not be liable for any disruptions, delays, failures, errors, omissions, or loss of transmitted information due to the unsatisfactory internet access or any online or system failures or disruptions that may howsoever occur during the process of public auction at the NCM website resulting in the E-Bidders unable to place or execute the bid or resulting in any loss whatsoever.
- 6.5. NCM website is owned and operated by the Auctioneer. The E-Bidders agree and accept that the Auctioneer or the Assignee/Bank in which the Auctioneer acts for or their Solicitors or any of their respective servants or agents shall not be in any way liable for any claims or loss arising out of the use of the NCM website.

7. APPLICABLE LAWS AND JURISDICTION

- 7.1. The usage of the NCM website together with the terms and conditions hereof shall be governed by and construed in accordance with the laws of Malaysia.
- 7.2. The laws of Malaysia shall regulate and apply to all electronic transactions of immoveable property by public auction. Any legal actions or proceedings arising out of or in connection with the electronic transaction of immoveable property by public auction shall subject to the exclusive jurisdiction of the Courts of Malaysia.

8. CONFIDENTIALITY OF INFORMATION

- 8.1. By accessing this NCM website, the E-Bidders acknowledge and agree that NCM website may collect, retain, or disclose the E-Bidder's information or any information by the e-bidders for the effectiveness of services, and the collected, retained or disclosed information shall comply with Personal Data Protection Act 2010 and any regulations, laws or rules applicable from time to time.
- 8.2. E-Bidders agree to accept all associated risks when using the service in the NCM website shall not make any claim nor will the Auctioneer or NCM website be liable for any unauthorized access or any consequential loss or damages suffered howsoever caused.
- 8.3. E-Bidders shall be responsible for the confidentiality and use of password and not to reveal the password to anyone at any time and under any circumstances, whether intentionally or unintentionally.
- 8.4. E-Bidders agree to comply with all the security measures related to safety of the password or generally in respect of the use of the service.
- 8.5. E-Bidders accept the responsibility that in any event that the passwords are in the possession of any other person whether intentionally or unintentionally, the E-Bidders shall take precautionary steps for the disclosure, discovery, or the E-Bidders shall immediately notify the Auctioneer.

9. INTELLECTUAL PROPERTY

- 9.1. Any information, contents, materials, documents, details, graphics, files, data, text, images, digital pictures, or any visual being displayed in the NCM website shall not be used or published either by electronic, mechanical, photocopying, recording or otherwise without the permission from NCM website.
- 9.2. In the event of any infringement of intellectual property rights under the Terms and Conditions herein, NCM website may use any available legal remedies which may include the demand for actual or statutory damages, solicitors' fees and injunctive relief.

10. MISCELLANEOUS

- 10.1. In the event there is any inconsistency, discrepancy, misstatement or error appearing in translations of the particulars and the Terms and Conditions to any other language (if any), the Terms and Conditions in the English Language version shall prevail.
- 10.2. In the event of any inconsistency between the Terms & Conditions stated herein and the Conditions of Sale attached to the Proclamation of Sale, the Conditions of Sale attached to the Proclamation of Sale shall prevail.
- 10.3. Words importing the singular number shall include the plural number and vice versa.

Bidder's Copy